

TENTATIVE RULINGS

FOR: July 30, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. 3 Zoom

Join by Video

<https://www.zoomgov.com/j/1605557082?pwd=2LHT804qHaQdoqbfaaG1Rzswp9uowO.1>

Department 3 will not be permitting remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer.
(Cal. Rules of Court, Rule 1.150(c) & (d))**

**** Creditors Adjustment Bureau, Inc. v. Rodrigo Barrera Lara will be heard in Dept. 3
All other matters originally set in Dept. B will be heard in Dept. A ****

CIVIL CALENDAR – Hon. Joseph J. Solga, Dept. 3 (Criminal Courts Bldg.) at 8:30 a.m.

Creditors Adjustment Bureau, Inc. v. Rodrigo Barrera Lara et al **26CV000234**

- [1] MOTION TO COMPEL RESPONSES TO PLAINTIFF’S DEMAND FOR IDENTIFICATION, PRODUCTION, INSPECTION AND COPYING OF DOCUMENTS AND OTHER TANGIBLE THINGS; REQUEST FOR MONETARY SANCTIONS [as to Defendant Rodrigo Barrera Lara]
- [2] MOTION TO COMPEL RESPONSES TO PLAINTIFF’S FIRST SET OF SPECIAL INTERROGATORIES; REQUEST FOR MONETARY SANCTIONS [as to Defendant Rodrigo Barrera Lara]
- [3] MOTION TO COMPEL RESPONSES TO PLAINTIFF’S DEMAND FOR IDENTIFICATION, PRODUCTION INSPECTION AND COPYING OF DOCUMENTS AND OTHER TANGIBLE THINGS; REQUEST FOR MONETARY SANCTIONS [as to Defendant General Contractor Inc.]
- [4] MOTION TO COMPEL RESPONSES TO PLAINTIFF’S FIRST SET OF SPECIAL INTERROGATORIES; REQUEST FOR MONETARY SANCTIONS [as to Defendant General Contractor Inc.]

TENTATIVE RULING: Due to constraints on the Court’s judicial resources beyond its control, all four motions are CONTINUED to August 13, 2026, at 8:30 a.m. in Dept. B. The Case Management Conference on July 30, 2026, is also CONTINUED to August 13, 2026, at 8:30 a.m. in Dept. B.

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Akela Nang Xayasounthone **23PR000111**

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review - Biennial hearing in two years, on July 28, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Liliana Cirigo Casas

25PR000116

REVIEW – 1ST YEAR

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on July 28, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Rogelio Perez-Plancarte

25PR000117

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on July 28, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Estate of Tera Scott

25PR000254

FIRST AND FINAL ACCOUNT AND REPORT OF EXECUTOR AND PETITION FOR ITS SETTLEMENT, AND PETITION FOR FINAL DISTRIBUTION, FOR ALLOWANCE OF COMPENSATION TO EXECUTOR AND ATTORNEY FOR ORDINARY SERVICES

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The November 25, 2026, Status Hearing Re: Final Distribution is VACATED.

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In The Matter of Karen K. Carson Revocable Trust

26PR000040

SECOND AMENDED PETITION FOR ORDERS

TENTATIVE RULING: The matter is CONTINUED to August 4, 2026, at 8:30 a.m. in Dept. A.

There remains no sufficient proof of service of the Amended Petition and no proof of service of the Notice of Hearing in the Court's file. (See Probate Code § 17203 [requiring 30 days' notice of hearing on trust matters].) The Court notes that Petitioner filed a Proof of Service of the Amended Petition on July 13, 2026 (7/13 POS). However, the 7/13 POS does not provide proof that the Amended Petition was served on all persons listed in the Amended Petition as entitled to notice. (Compare *id.* with Amended Petition at 11:2.) Specifically, there is no proof of service of the Amended Petition on Ian Lowney, Colin Lowney, Maria Ramirez, Teresa

Gonzalez-Ramirez, or Suesan [sic] Kelly Hunt. (See Amended Petition at 11:2.) Moreover, there remains *no* proof of service of Notice of the instant hearing. The Court lacks jurisdiction to rule on a matter that has not been properly noticed for hearing on the date in question. (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

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**In The Matter of The Marjorie L. Watson 2014 Revocable
Living Trust**

26PR000111

VERIFIED PETITION FOR: 1. REMOVAL OF TRUSTEE; 2. APPOINTMENT OF
SUCCESSOR TRUSTEE; 3. ACCOUNTING

APPEARANCE REQUIRED. The parties shall attend prepared to discuss whether any opposition is anticipated, whether the parties intend to submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in informal settlement discussions or other alternative dispute resolution proceedings. Should any party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an estimate for the length of the hearing, and to set the hearing on the Court's calendar. Counsel are directed to meet and confer on the foregoing issues prior to the hearing.

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Estate of George Glascock

26PR000132

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Richard S. Thomas is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on July 30, 2027, at 8:30 a.m. in Dept. A. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

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In The Matter of Elianna Alvarez

26PR000156

PETITION FOR ORDER AUTHORIZING COMPROMISE OF MINOR'S CLAIM (Pr.C. 3500
et seq.)

APPEARANCE REQUIRED. The papers are in order. However, there is no written attorney fee agreement in the file. Rather, Petitioner states that a true and correct copy of the agreement will be made available at the hearing. (Pet., Attachment 17a, Declaration of Hank G. Greenblatt, ¶ 5.) The Court requires a review of the agreement prior to granting a minor's

compromise. Thus, counsel should appear with a copy of the attorney fee agreement for the Court's review.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Elizabeth Saldivar v. George Loudis et al

25CV000506

MOTION TO BE RELIEVED AS COUNSEL

APPEARANCE REQUIRED

The Court has reviewed the Declaration of William Eason filed on July 27, 2026. That Declaration provides information regarding efforts at locating Plaintiff Elizabeth Saldivar. This is fundamentally inconsistent with the Declaration, of Katelyn P. Dembowski, in Support of Attorney's Motion to be Relieved as Counsel filed on May 26, 2026. Specifically, Ms. Dembowski declares under penalty of perjury "[a]ttorney has personally served the client with copies of the motion papers filed with this declaration. A copy of the proof of service will be filed with the court at least 5 days before the hearing." There is no such proof of service in the Court's file.

Moreover, the Court notes that the Judicial Council form Attorney Declaration provides a box corresponding to "[a]ttorney has been unable to confirm that the address is current or to locate a more current address for the client . . ." That box was *not* checked in Ms. Dembowski's Declaration.

Counsel is directed to appear to explain the foregoing inconsistencies to the Court.

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M. David Jester v. Matthew Ospeck et al

25CV002143

MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, FROM DEFENDANT THE KNOLLS, L.C. AND REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff David Jester moves, pursuant to California Code of Civil Procedure sections 2030.290, subdivision (b), 2031.300, subdivision (b), 2023.010, 2023.030, and 2030.290, “for an Order compelling Defendant THE KNOLLS, L.C. . . . to respond to Plaintiff’s Request for Production of Documents, Set No. One propounded on The Knolls on November 13, 2026 . . .”¹ (Notice of Motion at 2:4-6.) Plaintiff also requests an award of monetary sanctions against The Knolls in the amount of \$12,412.00.

“‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

Given the foregoing, it is axiomatic that a party who moves the Court to intervene in a discovery dispute has a threshold burden of describing the dispute with sufficient specificity to permit the court to understand precisely what information or materials the moving party seeks to discover.

As quoted above, the Notice of Motion seeks an order compelling The Knolls to respond to a Request for Production of Documents. Consistent therewith, the statute cited, Section 2031.300, governs a motion to compel based on a parties’ failure to serve a timely response to a production demand (as opposed to a motion to compel *further* responses, which is governed by Section 2030.310.) The [Proposed] Order is also consistent with this request, providing that “The Knolls shall provide full and complete responses, without objections, to Plaintiff’s Request for Production of Documents, Set No. One, including production of responsive documents . . .” (*Id.* at 2:11-13.)

However, Mr. Jester concedes that “Defendant served its unverified responses to Written Discovery, Set One on January 20, 2026. Defendant served verifications for Written Discovery, Set One on February 9, 2026.” (Declaration of Sarah Hirschfeld-Sussman at ¶ 4.) The phrase “Written Discovery” is defined to include the subject Request for Production, Set One. (See *id.* at ¶ 2.)

Based on the foregoing, it appears that The Knolls *has* responded to the subject discovery.

Through the Memorandum filed in support of the Motion, Mr. Jester argues that The Knolls should be ordered to produce additional documents, and to serve an amended response. (See, *e.g.*, *id.* at 5:15-16 [“The Knolls served responses indicating it would comply with the requests, and produced a limited set of documents, however, Defendant’s production is plainly incomplete”].) The moving papers fail to support the argument.

¹ All statutory references herein are to the Code of Civil Procedure unless otherwise noted.

First, “[a]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement.” (Cal. Rules of Court, rule 3.1345.) No Separate Statement was filed in support of the instant motion.

Second, the burden on the propounding party is higher for a motion seeking to compel a further response than it is for a motion seeking a response in the first instance. The former motion must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) Mr. Jester fails to make *any* showing of good cause justifying the discovery sought. Mr. Jester fails even to provide the Court with a copy of the subject discovery requests.

Third, Mr. Jester fails to make a sufficient showing in support of its request for an order compelling The Knolls to produce additional documents in response to the discovery request. Again, Mr. Jester fails to provide the Court with a Separate Statement, a copy of the discovery request, and/or a copy of the response to the discovery request. Mr. Jester also fails to provide the Court with: (a) a detailed description of the documents produced; (b) a detailed description of the documents withheld; and/or (c) a discussion of why any withheld documents must be produced (*e.g.*, which requests they are responsive to and a showing of good cause in support of such requests.)

Based on the foregoing, the Motion is DENIED.

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Insurance Commissioner of the State of California v.
First American Title Company of Napa, et al.

25CV002569

APPLICATION FOR ORDER AUTHORIZING SALE

TENTATIVE RULING: The Application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Insurance Commissioner of the State of California (“Petitioner”) in his capacity as Conservator of First American Title Company of Napa (“FA Napa”) moves, pursuant to Insurance Code section 1037, subdivision (d),² for an order approving, and authorizing Petitioner

² All subsequent statutory references are to the Insurance Code unless otherwise specified.

to consummate, (1) the Asset Purchase Agreement and (2) the interdependent Servicing Agreement, each between Petitioner and First American Title Insurance Company (“First American”) (together, the “Transaction”).

B. LEGAL STANDARD

Section 1037, subdivision (d) authorizes a conservator to sell, transfer, or otherwise dispose of estate property “at its reasonable market value” or “in cases other than...sale, or transfer on the basis of reasonable market value, upon such terms and conditions as the commissioner may deem proper.” When the market value of the estate property exceeds \$20,000, the conservator must first obtain permission of the court. (§ 1037, subd. (d).)

“The trial court reviews the Commissioner’s actions under the abuse of discretion standard [citation]: was the action arbitrary, i.e. unsupported by a rational basis, or is it contrary to specific statute, a breach of the fiduciary duty of the conservator as trustee, or improperly discriminatory?” (*In re Executive Life Ins. Co.* (1995) 32 Cal.App.4th 344, 358.) In *In re Executive Life Ins. Co.*, the trial court had reviewed several of the Commissioner’s actions, one of which was the Commissioner’s determination to sell an insolvent life insurer’s junk bonds under section 1037, subdivision (d). (See *id.*, at 365.) By extension, the Court concludes that a trial court’s review of a conservator’s request for permission to dispose of estate property, under section 1037, subdivision (d), is for an abuse of discretion.

In Opposition, Respondents FA Napa and Cal Land Title Company (collectively, “Respondents”) fasten upon the standard under section 1037, subdivision (c), which they ask the Court to review *de novo*. Specifically, Respondents argue that the standard is whether the Transaction is deemed to be “most advantageous to the estate.” However, subdivision (c) applies to a different issue—a conservator’s power to compound, compromise, or *negotiate settlements of claims*; whereas, section 1037, subdivision (d) applies to the issue raised through the Petition—a conservator’s authority to sell, transfer, or otherwise dispose of or deal with, any estate property. Moreover, the authority relied upon by Respondents confirms that, even under subdivision (c)’s “most advantageous to the estate” standard, courts review the Commissioner’s actions for an abuse of discretion standard, not *de novo*. (See *Garamendi v. Golden Eagle Ins. Co.* (2005) 128 Cal.App.4th 452, 466; *Pac. Mut. Life Ins. Co. v. McConnell* (1955) 44 Cal.2d 715, 729.)

For these reasons, the Court rejects Respondents’ contentions regarding the “most advantageous to the estate” standard under *de novo* review. Rather, the Court reviews Petitioner’s decision to dispose of FA Napa’s property “at its reasonable market value” or “in cases other than...sale, or transfer on the basis of reasonable market value, upon such terms and conditions as the commissioner may deem proper” under an abuse of discretion standard.

C. DISCUSSION

1. The Transaction

The Transaction involves an Asset Purchase Agreement (“APA”) and a Servicing Agreement, executed between Petitioner and First American, dated May 29, 2026. (Declaration of Scott Pearce (“Pearce Decl.”) ¶ 8.) Both agreements are interdependent and must close together. (*Ibid.*)

The APA purchases, for \$500,000 (“Purchase Price”), FA Napa’s title plant (“Asset”), which is a records archive covering primarily Napa County, comprising both an electronic database and a physical component of more than 144,000 starters and associated maps. (*Id.*, ¶¶ 5, 8-9, Exh. B.) The APA further provides that First American will dismiss, with prejudice, upon the closing of the sale a federal court action between the parties related to trademark use (“Federal Litigation”). (*Id.*, ¶ 10, Exh. B (PDF p. 21, § 10.1).)

The Servicing Agreement provides that First American will perform FA Napa’s escrow obligations—namely, closing out FA Napa’s approximately 450 open escrow accounts which hold approximately \$861,000 in trust. (*Id.*, ¶ 11, Exh. C (PDF p. 29, ¶ C).) In exchange for First American’s performance of the escrow obligations, the Purchase Price shall be reduced by amounts actually incurred by First American, not to exceed \$63,465.66. (*Id.*, ¶ 8, Exh. B (PDF p. 17, § 2.2(b), Exh. C (PDF p. 32, § 4.1).) After a second reduction for premium trust off-set, the net proceeds of the Purchase Price come down to \$200,000. (*Id.*, ¶ 8.)

2. Section 1037, Subdivision (d)’s Applicability to the Transaction

As an initial matter, the Servicing Agreement does not immediately strike the Court as being subject to the Court’s permission under section 1037, subdivision (d), unless First American’s closing out of the escrow accounts constitutes the disposition of FA Napa’s real or personal property. If not, the Servicing Agreement does not sell, transfer, or dispose of the Asset; rather, it is merely related because it affects (reduces) the Purchase Price of the Asset. Neither party articulates section 1037, subdivision (d)’s applicability (or lack thereof) to the Servicing Agreement. Petitioner discusses the APA and Servicing Agreement as one, seeking permission for the Transaction as a whole. Respondents do not discuss the Transaction as separate parts, nor do they raise any issue with Petitioner’s seeking permission for the APA and Servicing Agreement together. Thus, for purposes of this Application, the Court will construe both the APA and Servicing Agreement as selling, transferring, or otherwise disposing of estate property subject to section 1037, subdivision (d).

3. The Grounds Under Section 1037, Subdivision (d) Supporting Petitioner’s Authority for the Transaction

Next, it appears (although the Court is not entirely clear) that Petitioner’s contention is that the Court should grant permission for the Transaction because it *both* disposes of the Asset “at its reasonable market value” *and* disposes of the Asset (and other estate asset, if any, at issue in the Servicing Agreement) “upon such terms and conditions as the commissioner may deem

proper.” (See Mem., 5:1-23 [discussing market value test for the Asset]; Reply, 6:12-27 [same] with Mem. 5:24-6:20 [discussing factors other than market value in support of the benefits of the Servicing Agreement, appearing to rely on the “deem proper” standard]; Reply, 5:9-11 [same].)

The Court finds that the record before it supports granting permission for the Transaction under both theories set forth within section 1037, subdivision (d).

First, “Market value is a product of the relevant market.” (*In re Executive Life Ins. Co.*, *supra*, 32 Cal.App.4th at 365.) Here, the Asset was marketed before and after the Conservatorship was established on December 22, 2025. (See Pearce Decl., ¶ 7.) Prior to the Conservatorship, FA Napa received, in 2025, a single conditional offer of approximately \$400,000, but the offer lapsed and the sale never happened. (*Ibid.*) After the Conservatorship, Petitioner re-canvassed the parties who had previously expressed interested and afforded First American the opportunity to review and bid in conjunction with providing escrow services. (*Id.*) Three groups expressed interest, two candidates (other than First American) performed on-site due diligence, but declined to make an offer. (*Id.*) First American’s offer is the only offer the estate received. (*Id.*) Petitioner contends that the foregoing demonstrates it diligently, vigorously, and intensely pursuant the Asset’s market value and, therefore, its decision to sell it at the Purchase Price is not arbitrary.

In Opposition, Respondents do not dispute that the Purchase Price is the reasonable market value for the Asset, nor do Respondents provide a higher offer, a competing valuation, a buyer willing to pay more, or any other evidence which would demonstrate that the Purchase Price is not the reasonable market value of the Asset. Rather, Respondents contend that Petitioners have failed to show that the Transaction represents the course “most advantageous to the estate,” which, as discussed above, is the improper standard.

Based on the foregoing, the Court finds that Petitioner did not abuse its discretion in accepting the Purchase Price as the “reasonable market value” of the Asset. (§ 1037, subd. (d).)

Second, even if the Transaction is viewed as a sale “other than ... sale, or transfer on the basis of reasonable market value,” the Court finds Petitioner did not abuse its discretion in accepting the Transaction based “upon such terms and conditions as the commissioner may deem proper.” (See § 1037, subd. (d).) “Section 1037(d) is part of a comprehensive statutory scheme which serves primarily to protect policyholders of insolvent insurers by a process of rehabilitation. Thus risk to policyholders in the process adopted is a primary consideration, and the key question here is the propriety of the ... sale in this light.” (*In re Exec. Life Ins. Co.*, *supra*, 32 Cal.App.4th at 365.) In exercising its power to either rehabilitate the insolvent insurer or to liquidate it, the Commissioner is vested with broad discretion. (*Id.*, at 356.)

Here, Petitioner argues that the Transaction is in the best interest of policyholders and creditors because it: (1) monetizes the Asset at a commercially reasonable price following a thorough market test, (2) provides a minimum of \$200,000 of distributable proceeds where there otherwise is none, (3) ends the Federal Litigation, and (4) advances the orderly windup of the estate toward liquidation. (See Mem., 5:25-6:8; Pearce Decl., ¶ 13.) Petitioner further argues, albeit without evidentiary support, that it considered and weighed FA Napa’s Shareholder,

Johnny Karpuk’s, concerns in exercising its discretion to enter the Transaction. (Mem., 6:9-20.) Petitioner further points out that its duty runs to creditors, policyholders, and the public, none of which have opposed the Transaction. (Reply, 7:25-28.) Rather, the only Opposition is from FA Napa’s residual equity, which stands last in the statutory distribution priority. (*Id.*, 7:28-8:2, citing § 1033, subd. (a)(9).)

The Court finds, based on the record before it, that Petitioner did not abuse its discretion in accepting the Transaction based “upon such terms and conditions as the commissioner may deem proper.” (§ 1037, subd. (d).)

In Opposition, Respondents, again relying on the improper “most advantageous to the estate” standard, argue that Petitioner has not met its burden because the Petition fails to: (1) address the value of a separate, material asset of FA Napa—its License—or show that the License’s value was reflected in the Transaction (see Opp., 7:15-16.); (2) account for potentially valuable litigation claims (see *id.*, 8:15-9:11), (3) adequately address the allocation of FA Napa’s liabilities (see *id.*, 9:12-10:4), or (4) discuss available alternatives (*id.*, 10:5-11:3). Respondents further argue that one of the benefits of the Transaction expressed in the Petition—the administration of escrow accounts—can occur independently of the Transaction through sections 12376 and 12377. (*Id.*, 11:4-12:6.)

In Reply, Petitioner asserts that, in addition to Respondents applying the incorrect standard, none of the foregoing issues are involved in, or relevant to, the Transaction. Thus, the Petition need not address or evaluate them. Petitioner specifically argues that Respondents demand an evaluation of: (1) the License, which is not being sold in the Transaction and is purportedly subject to a cease-and-desist order (Declaration of Jonathan Karpuk (“Karpuk Decl.”), ¶¶ 40, 52), (2) litigation claims that no one has filed (Pearce Decl., ¶ 10), and (3) goodwill of an insolvent company with no employees left to close its own open escrows (Pearce Decl., ¶ 6). (Reply, 7:12-23.)

The Court is not persuaded that the issues raised by Respondents in Opposition either preclude a finding that Petitioner did not abuse its discretion in entering the Transaction based “upon such terms and conditions as the commissioner may deem proper,” or support a contrary finding that Petitioner’s decision to enter the Transaction was “arbitrary, i.e. unsupported by a rational basis, ... contrary to specific statute, a breach of the fiduciary duty of the conservator as trustee, or improperly discriminatory” (*In re Executive Life Ins. Co.*, *supra*, 32 Cal.App.4th at 358.)

For all the foregoing reasons, the Application is GRANTED.

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****at 9:30 a.m.****

McGrew Behavior Intervention Services, Inc. v. Israel Delgado

25CV001274

[1] DEFENDANT ISRAEL DELGADO’S MOTION TO STRIKE (ANTI-SLAPP)

TENTATIVE RULING: The Clerk is directed to STRIKE from the Court’s file the Supplemental Reply in Support of Opposition and the Amended Declaration of Deborah McGrew filed June 30, 2026. The Motion to Strike the Complaint is GRANTED. The request for an award of attorneys’ fees is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Motion

Defendant Israel Delgado specially moves for an order striking the Verified Complaint, as a strategic lawsuit against public policy (SLAPP) pursuant to Code of Civil Procedure section 425.16 (Section 425.16 or Anti-SLAPP Statute).

2. Nature of Claims

On June 27, 2025, Plaintiff McGrew Behavior Intervention Services, Inc. (McGrew) filed a Verified Complaint (Complaint) against Defendant Israel Delgado. The gravamen of the Complaint is that Plaintiff’s business has suffered damage, and will continue to suffer damage, from certain statements made, published, and disseminated by Mr. Delgado. Pursuant to the allegations of the Complaint, McGrew is a corporation “that provides specialized in-school behavior intervention services to school districts, including the Napa Valley School District, to assist in caring for pupils with physical and mental disabilities.” (*Id.* at ¶ 1.) McGrew employed one Richard Wolf, a non-party to the instant action, as an Aide and for the purpose of providing services on behalf of McGrew to students at American Canyon High School. (*Id.* at ¶ 7.) Beginning in or around March 20, 2025, Mr. Delgado “posted a series of videos on TikTok, Instagram, Facebook and other social media platforms alleging that one of McGREW’S employees (later identified as Richard Wolf) physically abused DELGADO’S minor child, assaulted his minor child, placed his minor child in an isolation chamber, and deprived his minor child of food and water. DELGADO also alleged that McGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations.” (*Id.* at ¶ 8.)

By the Complaint, McGrew prays for damages and injunctive relief and asserts claims based in libel, slander, invasion of privacy, interference with economic advantage, and trade libel / business disparagement.

3. Court's Order Striking Supplemental Reply in Support of Opposition and Amended Declaration of Deborah McGrew

Mr. Delgado filed the instant Motion on November 3, 2025, and set the matter for hearing on December 2, 2025. On November 17, 2025, McGrew filed an opposition brief. On November 24, 2025, Mr. Delgado filed a reply. The matter then came on for hearing December 2, 2025. It was, thereafter, continued a number of times.

On June 30, 2026, McGrew filed a "Supplemental Reply in Support of Opposition" to the Motion, and an Amended Declaration of Deborah McGrew. The Court can find no order granting McGrew leave to file the Supplemental Reply or Amended Declaration. As such, the Court finds that they constitute pleadings "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subd. (b).) On this grounds, the Court orders the Clerk to STRIKE the Supplemental Reply and Amended Declaration from the case file.

B. LEGAL ANALYSIS

1. Legal Background

"The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from 'any act [by the defendant] in furtherance of the person's right of petition or free speech under the United States or California Constitution,' and (2) the defendant was exercising his or her right of free speech 'in connection with a public issue.' (Citation.) If the moving defendant establishes those two elements, the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action." (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.) "The anti-SLAPP statute's definitional focus is not the form of the plaintiff's cause of action but, rather, the defendant's activity that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*).)

2. The Activities Giving Rise to McGrew's Claim(s) are Protected Activity Under the Statute

As defined by the anti-SLAPP statute, protected activity includes "any written . . . statement . . . made in a place open to the public or a public forum in connection with an issue of public interest." (Code Civ. Proc. § 425.16, subd. (e)(3) (Section 425.16).)

It is uncontroverted that McGrew is a contractor that provides specialized in-school behavior intervention services to school districts, including the Napa Valley School District, to assist in caring for students with disabilities. (See Complaint at ¶ 1; see also Opposition at 2:21-27.)

Pursuant to the allegations of the Complaint, the activities that give rise to McGrew's claims are "alleging that one of McGREW'S employees . . . physically abused DELGADO'S minor child, assaulted his minor child, placed his minor child in an isolation chamber, and deprived his minor child of food and water" and claiming that "McGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations" through social media posts and at a publicized demonstration at American Canyon High School. (See Complaint at ¶¶ 8-11.)

"[R]eviews posted to an Internet website meet [Section 425.16, subd. (e)(3)'s] definition of protected activity." (*Abir Cohen Treyzon Salo, LLP v. Lahiji* (2019) 40 Cal.App.5th 882, 887-88 (*Lahiji*) [upholding trial court finding that comments posted to a website by a former client regarding quality of a law firm's services were protected activity]; see also *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146 (*Chaker*) ["statements posted to the Ripoff Report Web site about [Plaintiff's] character and business practices plainly fall within in the rubric of consumer information about [Plaintiff's] business and were intended to serve as a warning to consumers about his trustworthiness"].)

"The public interest requirement of section 425.16, subdivision (e)(3) must be "construed broadly" so as to encourage participation by all segments of our society in vigorous public debate related to issues of public interest.' [Citation.] The Legislature inserted the 'broad construction' provision out of concern that judicial decisions were construing that element of the statute too narrowly." (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23-24.) (*Gilbert*) [held: a public website created by Plaintiff dedicated to the pros and cons of plastic surgery constitutes protected activity under Section 425.16, subdivision (e)(3) where "the Web site was not limited to attacking [plaintiff] but contributed to the general debate over the pros and cons of undergoing cosmetic surgery"].)

McGrew contends that the Anti-SLAPP Statute and caselaw *require* Mr. Delgado to make an evidentiary showing to support his initial burden. (See, *e.g.*, Opposition at 4:25, *et seq.*) None of the authority cited by McGrew, however, support the contention. Section 425.16, subdivision (b)(2) provides only that the Court shall consider pleadings and affidavits filed in support of and opposition to an Anti-SLAPP Motion. *Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, at the cited page 940, contains no suggestion that a moving defendant is required to make an evidentiary showing to carry its initial burden. Rather, that portion of the opinion discusses a *plaintiff's* burden of producing evidence to establish a probability of success on its claim(s). While evidentiary support may be appropriate in some circumstances, the Court is aware of no authority *requiring* a moving defendant to submit evidence to carry its initial burden if the showing can be made from reference to the pleadings, caselaw, and matters subject to judicial notice.

For example, no evidence is required for the Court to find that the issue of whether or not an agent of a contractor placed in a public school has mistreated students of the public school is a matter of public interest. In *Terry v. Davis Community Church* (2005) 131 Cal.App.4th 1534, 1547 the court held that "[t]he issue as to whether or not an adult who interacts with minors in a church youth program has engaged in an inappropriate relationship with any of the minors is

clearly a matter of public interest.” There can be no dispute but that analogous behavior in a *public* school is of even greater concern to the public.

Based on the foregoing, the Court finds that the activities that form the basis of McGrew’s claims against Mr. Delgado are protected activity pursuant to Section 425.16, subdivision (e)(3).

McGrew next argues that “[w]hen determining whether the speech contributed to public debate, the court must examine whether a defendant through public or private speech or conduct participated in, or furthered, the discourse that makes an issue one of public interest.” (Opposition at 5:21-23.)

“What it means to ‘contribute to the public debate’ [citation] will perhaps differ based on the state of public discourse at a given time, and the topic of contention. But ultimately, our inquiry does not turn on a normative evaluation of the substance of the speech. We are not concerned with the social utility of the speech at issue, or the degree to which it propelled the conversation in any particular direction; rather, we examine whether a defendant – through public or private speech or conduct – participated in, or furthered, the discourse that makes an issue one of public interest.” (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 150-151.)

The Court concludes that alleged statements that an individual who abused a public-school student was permitted, by his employer – a contractor with the public school, to remain on assignment at the public school are statements that contribute to the public debate on the safety of the public’s schools for their students. And again, the Court finds that this issue is one of utmost public interest. The Court finds that the issue of the safety of public schools is of far greater public concern than token collecting, the subject at issue in *Weinberg v. Feisel* (2003) 110 Cal.App.4th 1122, 1128, cited by McGrew.

3. McGrew Fails to Carry It’s Burden of Showing a Probability of Prevailing on its Claims

“If the court finds such a showing has been made, it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. Under section 425.16, subdivision (b)(2), the trial court in making these determinations considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” (*Equilon*, supra, 29 Cal.4th at 67.) “[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’ [Citations.] ‘Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ [Citations.]’ (*Navellier*, supra, 29 Cal.4th at 88-89.) Because the burden on the plaintiff is similar to the standard used in determining motions for summary judgment. ‘[t]he showing must be made through ‘competent and admissible evidence.’ [Citations.] Thus, declarations that lack foundation or personal knowledge, or that are argumentative, speculative, impermissible opinion, hearsay, or conclusory are to be disregarded.” (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 26 (*Gilbert*)). Moreover,

“[i]n opposing an anti-SLAPP motion, the plaintiff cannot rely on the allegations of the complaint, but must produce evidence that would be admissible at trial.” (*HMS Capital, Inc. v. Lawyers Title Co.* (2004) 118 Cal.App.4th 204, 212 (*HMS Capital*).) “In making this assessment it is ‘the court’s responsibility . . . to accept as true the evidence favorable to the plaintiff . . .’ [Citation.] The plaintiff need only establish that his or her claim has ‘minimal merit’ [citation] to avoid being stricken as a SLAPP.” (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291.)

McGrew asserts that “McGREW’s Verified Complaint and the Declaration of Deborah McGrew (McGrew Decl.) constitute the prima facie evidence required. McGREW has alleged all of the required elements of each cause of action including libel, slander, false light invasion of privacy, intentional interference with prospective economic advantage, trade libel / business disparagement, preliminary injunction and permanent injunction.” (Opposition at 7:4-8.) As noted, above, the Complaint, even if verified, cannot be relied on in establishing its showing. (See *HMS Capital, supra*, 118 Cal.App.4th at 212.)

McGrew fails to: (1) set out the element of its claims; (2) identify, for the Court, what allegations of the Complaint support each element; and/or (3) cite to evidence supporting each such allegation. It is not the Court’s obligation to pour over the materials in the file in search of support for McGrew’s argument. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

The McGrew Decl. is the *only* evidence properly submitted by McGrew in support of its Opposition. It contains no evidence tending to demonstrate that any of the alleged statements “that one of McGREW’S employees (later identified as Richard Wolf) physically abused DELGADO’S minor child, assaulted his minor child, placed his minor child in an isolation chamber, and deprived his minor child of food and water” were false. (See Complaint at ¶¶ 8 and 11.)

McGrew’s focus, through the Opposition, is on Mr. Delgado’s alleged statement that “McGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations.” (Complaint at ¶¶ 8 and 11.)

McGrew fails, however, to persuade the Court that this statement constitutes a statement of fact sufficient to support its asserted claims.

“‘The *sine qua non* of recovery for defamation . . . is the existence of falsehood.’ [Citation.] Because the statement must contain a provable falsehood, courts distinguish between statements of fact and statements of opinion for purposes of defamation liability. Although statements of fact may be actionable as libel, statements of opinion are constitutionally protected.” (*McGarry v. Univ. of San Diego* (2007) 154 Cal.App.4th 97, 112.) “[T]he question is not strictly whether the published statement is fact or opinion. Rather, the dispositive question is whether a reasonable fact finder could conclude the published statement declares or implies a

provably false assertion of fact.” (*Franklin v. Dynamic Details, Inc.* (2004) 116 Cal.App.4th 375, 385.)

McGrew argues that “DELGADO’s accusations are factual. Accusing a licensed professional contractor of alleged negligence and complicity in criminal acts is a provably false assertion of fact, not protected opinion as DELGADO contends. These statements imply a factual basis (e.g., that MCGREW knew of prior bad acts and ignored them), which Plaintiff has sworn under oath are false (McGrew Decl., ¶ 7).” (Opposition at 7:27-8:3.)

First, the argument “begs the question” in that its premise assumes the truth of its conclusion. As such, it does not aid the Court’s analysis.

Second, there is no allegation, that the Court can find, in the Complaint that Mr. Delgado accused McGrew of “complicity in criminal acts.” Again, what McGrew has alleged is that Mr. Delgado stated that “MCGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations.” McGrew’s own evidence tends to support a finding that the employee *did* “remain on American Canyon High School premises subsequent to the[] allegations.” “[T]he School and MCGREW agreed to reassign Mr. Wolf. MCGREW removed Mr. Wolf from the case and assigned him to the substitute list. On the day in question he was substituting at that school in another classroom after NVUSD requested a substitute.” (See McGrew Decl. at ¶ 21.)

The question, therefore, becomes whether the statement “McGrew was negligent [for allowing it]” declares or implies a provably false assertion of fact. It strikes the Court that whether McGrew’s asserted actions in allowing the employee to remain constitute negligence is a mixed question of law and fact. The element of whether McGrew owed someone a duty to ensure that its employee did not remain on campus after the allegations is a question of law. (*Hassaine v. Club Demonstration Services, Inc.* (2022) 77 Cal.App.5th 843, 850 [“Whether a duty exists is a question of law to be resolved by the court”].) In this context, the Court does not find that the statement “McGrew was negligent” contains a provable falsehood. As such, it is not a statement that can support claims for defamation.

Even assuming, *arguendo*, that the statement (“MCGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations”) is one that may properly support a defamation claim, McGrew, in arguing that the statement *was* demonstrably false, notes only that it “conducted a thorough background, and criminal records check on Mr. Wolf. (McGrew Decl., § 11.) McGrew ensured Mr. Wolf was trained, including Non-Violent Crisis Intervention. When a non abuse [sic] related request for a change was made, MCGREW and NVUSD investigated, and the investigation found no witnesses to confirm DELGADO’s allegations. (McGrew Decl., §§ 20, 21).” (Opposition at 7:14-18.) Neither the argument, nor the evidence cited in support thereof, is sufficient to make a *prima facie* showing that the alleged statement, by Mr. Delgado, was false.

Finally, Ms. McGrew’s conclusory statement that “NVUSD and not MCGREW has sole authority to determine which individuals are permitted on its campus” is directly contradicted by her statements that “the School and MCGREW agreed to reassign Mr. Wolf. MCGREW removed

Mr. Wolf from the case and assigned him to the substitute list. On the day in question he was substituting at that school in another classroom after NVUSD requested a substitute.” (Compare McGrew Decl. ¶ 22 with ¶ 21.)

Based on the foregoing, the Court does not find that McGrew has made a prima facie showing of a reasonable probability of prevailing on its claims.

4. Attorneys’ Fees

Mr. Delgado’s request for attorneys’ fees is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A.

[2] APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION

TENTATIVE RULING: The Application is DENIED.

A. ORDER TO SHOW CAUSE

On July 1, 2025, the Court issued an Order to Show Cause Re Preliminary Injunction. The Court thereby ordered Defendants Israel Delgado to show cause why he should not be enjoined, during the pendency of this action, from the following:

1. Making, publishing, posting, disseminating, broadcasting . . . any false, defamatory, or disparaging statements, videos, audio recordings, images, or written content concerning McGREW, its business practices, its employees (in the context of their employment by McGREW and McGREW’s alleged conduct related thereto), or its services, including but not limited to statements alleging or implying that McGREW was negligent in the hiring, supervision, or retention of its employees; that McGREW was negligent in allowing any employee to be on school premises; that McGREW condoned, participated in, or was complicit in any alleged misconduct by its employees; or any other statements that have the natural tendency to injure McGREW in its business or reputation.
2. From repeating or republishing the specific false and defamatory allegations made by DELGADO on or about March 20, 2025, and thereafter, on platforms including TikTok, Instagram, Facebook, other social media, and as further disseminated through media outlets like Univision, concerning McGREW’s alleged negligence or other wrongdoing.
3. And from directly or indirectly soliciting, inducing, or encouraging any third parties to publish, republish, or disseminate the aforementioned false and defamatory statements concerning McGREW.

A. THE COMPLAINT

On June 27, 2025, Plaintiff McGrew Behavior Intervention Services, Inc. filed a Verified Complaint (Complaint) against Defendant Israel Delgado. The gravamen of the Complaint is that Plaintiff’s business has suffered damage, and will continue to suffer damage, from certain

statements made, published, and disseminated by Defendant. Pursuant to the allegations of the Complaint, Plaintiff is a corporation “that provides specialized in-school behavior intervention services to school districts, including the Napa Valley School District, to assist in caring for pupils with physical and mental disabilities.” (*Id.* at ¶ 1.) Plaintiff employed one Richard Wolf, a non-party to the instant action, as an Aide and for the purpose of providing services on behalf of Plaintiff to students at American Canyon High School. (*Id.* at ¶ 7.) Beginning in or around March 20, 2025, Defendant “posted a series of videos on TikTok, Instagram, Facebook and other social media platforms alleging that one of McGREW’S employees (later identified as Richard Wolf) physically abused DELGADO’S minor child, assaulted his minor child, placed his minor child in an isolation chamber, and deprived his minor child of food and water. DELGADO also alleged that McGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations.” (*Id.* at ¶ 8.)

By the Complaint, Plaintiff prays for damages and injunctive relief and asserts claims based in libel, slander, invasion of privacy, interference with economic advantage, and trade libel / business disparagement. On October 2, 2025, Defendant filed a Verified Answer by which he generally and specifically denied each allegation of the Complaint and asserted eighteen affirmative defenses.

B. LEGAL ANALYSIS

An injunction may be granted “[w]hen it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.” (Code Civ. Proc. § 526, subdivision (a)(2).) “[A]s a general matter, the question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief.” (*Jay Bharat Developers, Inc. v. Minidis* (2008) 167 Cal.App.4th 437, 443, quoting *White v. Davis* (2003) 30 Cal.4th 528, 554; see *IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 72.) As to the first, “[a] plaintiff seeking a preliminary injunction bears the burden of presenting facts which show a reasonable probability that [it] will succeed on the merits.” (*Citizens for Better Streets v. Bd. Of Supervisors* (2004) 117 Cal.App.4th 1, 6.)

Plaintiff fails to carry that initial burden here. The only evidence submitted by Plaintiff in support of the motion is a 10-paragraph declaration of Deborah McGrew (McGrew Decl.), who identifies as Plaintiff’s owner and Executive Director. (See *id.* at ¶ 1.) Plaintiff also cites to its Verified Complaint as evidence. (See Code Civ. Proc. § 527, subd. (a) “[a] preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor”].)

The only discussion in Plaintiff’s Supporting Memorandum (Support Memo) relating to the likelihood that Plaintiff will prevail on the merits involves its claim for defamation. (See *id.* at 4:21, *et seq.*) Plaintiff acknowledges that “[t]o prevail on a cause of action for defamation, a plaintiff must prove publication that is false, defamatory, unprivileged, and has natural tendency to injure or causes special damage.” (*Id.* at 4:22-23; see also)

Plaintiff fails to make an evidentiary showing that the alleged statements were false. In addressing this element of the claim Plaintiff cites exclusively to paragraph 7 of the McGraw Decl. and paragraph 13 of the Complaint. (See Support Memo at 5:3-5.) McGrew declares only that, “[t]hese statements are untrue.” (McGrew Decl. at ¶ 7.) The Complaint, similarly, alleges only that, “[t]he statements made and published by DELGADO, both in writing and orally, concerning McGREW were, and are, false and unprivileged.” (Complaint at ¶ 13.) Each statement is wholly conclusory. Neither sets forth *evidence* tending to show that one or more of the statements Defendant is alleged to have made is, in fact, untrue. Neither identifies the foundation upon which the conclusion – that the statements are untrue – is based. Finally, as to the Complaint, the Court notes that Defendant filed a verified answer. “[W]hen plaintiffs’ application is based solely upon a verified complaint, a simple verified answer denying the essential allegations of the complaint often justifies refusing to grant the preliminary injunction unless the allegations of the complaint make out a ‘strong case for equitable relief.’ [Citation.]” (*Jessen v. Keystone Sav. & Loan Assn.* (1983) 142 Cal.App.3d 454, 460 (*Jessen*)). The Court does not find that the Complaint, here, makes out a strong case for the relief sought.

Moreover, Plaintiff fails to cite to any evidence, or provide meaningful discussion, on the element of privilege. Plaintiff argues only that “[t]he statements are not protected by any known privilege; they are widespread public broadcasts made with malice or reckless disregard for the truth.” (Support Memo at 5:9-10.)

As Defendant points out, however, the alleged statements concerned putative acts of abuse of Defendant’s special needs son by an employee of Plaintiff. As Defendant states, they were motivated out of a desire to “advocate for Alex’s safety and the safety of other special needs children who may be unable to speak for themselves.” (Declaration of Israel Delgado at ¶ 14.) The statements fairly clearly invoke the so-called common-interest privilege of Civil Code section 47, subdivision (c)(1). “A privileged publication or broadcast is one made: [¶] ... [¶] (c) In a communication, without malice, to a person interested therein, (1) by one who is also interested” (*Ibid.*) Plaintiff failed to address the privilege, and failed to make a prima facie showing that the statements are not privileged thereunder. (See *Taus v. Loftus* (2007) 40 Cal.4th 683, 720 [held: in anti-SLAPP context that Plaintiff failed to make a prima facie showing of likelihood of prevailing on defamation claim based on failure to address the common interest privilege].)

Where a moving party fails to show a likelihood of success on the merits, no injunction may issue, regardless of whether there is a likelihood of irreparable harm. (See *Jessen*, *supra*, 142 Cal.App.3d at 459 [“it is appropriate to deny an injunction where there is no showing of reasonable probability of success, even though the foreclosure will create irreparable harm, because there is no justification in delaying that harm where, although irreparable, it is also inevitable”].)

Based on the foregoing, the Court does not find sufficient grounds for issuing the requested injunction. The Application is, therefore, DENIED.